

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

COUNTY OF SAN FRANCISCO,

Petitioner

VS.

GUIBER R DIAZ,

Respondent

) Case Number: FCS-11-346342

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER FOR CHANGE OF CHANGE OF CHILD CUSTODY, VISITATION
(PARENTING TIME)

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Respondent Guilber Diaz (Father) and Other Parent Sarai Ruiz (Mother). They share one minor child: Maria Diaz, age 14 (DOB:12/22/10).
- 2) On November 3, 2025, Father filed a Request for Order seeking modification of the existing child custody and visitation orders. Father requests: (a) joint legal and joint physical custody; and (b) an order that the minor child reside with Father in Los Angeles during the school year and with Mother during school breaks. Mother currently has sole legal and sole physical custody; Father has not had any parenting time with the minor child in the past 10 years. The minor child has a relationship with her paternal grandparents and has connected with Father on the grandparents' phone. According to Father, the minor child wants a relationship with him.
- 3) On November 13, 2025, Mother filed a Responsive Declaration wherein she asks the Court to deny Father's requests. Mother seeks an order that she maintain sole legal and sole physical

1 custody and Father have supervised visitation. Mother also requests a Tier II interview of the
2 minor child.

3 4) At the prior February 19, 2026 hearing, the Court issued the following orders:

4 a. The Court finds good cause to order a Tier II interview of the minor child regarding her
5 desire and/or willingness to have in-person visits with Father. Both parties waived
6 confidentiality.

7 b. Matter continued to April 2, 2026 at 9:00 a.m., in Department 403 for consideration of
8 Tier II report.

9 c. All existing orders regarding custody and visitation shall remain in full force and effect.

10 d. Both parties to file update declarations 10 days before next hearing.

11 5) On April 1, 2026, the Tier II report was filed.

12 6) On April 2, 2026, the Court continued the matter to May 7, 2026, to permit additional time for
13 submission and consideration of Tier II report.

14 7) The Court has reviewed and considered the report.

15 8) On April 29, 2026, Mother filed a declaration, which has been read and considered by the Court.
16 Mother indicated that the minor child was no longer residing with her.

17 **B. Findings and Order**

18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child(ren) is the United States.

22 2) **The parties are ordered to appear** as the Court is concerned about the minor child's well-being.
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